

Veena Anand vs State Of H.P. And Another on 1 July, 2024

Neutral Citation No. (2024:HHC:4268) IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. MMO No.1012 of 2022 .

Reserved on: 11.06.2024 Date of Decision: 01.07.2024.

Veena Anand

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Versus

State of H.P. and another

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Hon'ble Mr Justice Rakesh Kainthla, Judge. Whether approved for reporting?1 Yes.

For the Petitioner : Mr. B.L. Soni, Advocate. For the Respondents : Mr. Ajit Sharma, Deputy Advocate General, for respondent No.1- State.

Mr. Rohit, Advocate,

respondent No.2.

Rakesh Kainthla, Judge

The petitioner has filed the present petition for quashing the summoning order dated 18.9.2020 and the consequential proceedings pending before learned Chief Judicial Magistrate, Kullu in a case titled State of H.P. Vs. Aman Anand and others. (The parties shall hereinafter be referred to in the Whether reporters of Local Papers may be allowed to see the judgment? Yes.

same manner as they were arrayed before the learned Trial Court for convenience).

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2. Briefly stated, the facts giving rise to the present petition are that informant Dr. Priyanka Lakhanpal filed a complaint before SHO, Women Police Station, Kullu stating that she was married to Aman Anand on 24.7.2016 as per Hindu rites and customs. Soon after the marriage, her husband and his family members, Vijay Kumar and Mrs Veena Anand, started making indirect references towards the dowry. Her sister-in-

law Isha Kapoor (who lives in Kenya) would join her brother (victim's husband) and his parents in passing insulting comments and making references about the money and other valuables that should have been given to them at the time of the marriage. Adequate jewellery was given to them at the time of the marriage. The indirect demands turned into the direct demands of dowry and they started humiliating and harassing the informant physically, mentally and emotionally. They also started asking informant's parents for various articles and money on various occasions. They demanded the salary of the informant and the informant started handing over her salary to them. Her gold jewellery was taken away from her by her parents-in-law and was never returned to her. The informant disclosed all these incidents to her parents who presented .

valuable gifts and money to the informant's husband and her parents-in-law. The informant's husband would quarrel with her and torture her till late at night. He complained about the money and articles given to him by the informant's parents. The informant became pregnant and she was forced to reside with her parents. No one from the family of her husband visited her after she had given birth to a daughter on 7.2.2020, even though she had informed her husband and his parents. No person called her to know about her well-being. The informant requested her husband to get the name of her daughter recorded in the family register and get her Aadhar Card prepared but he did not assist her. Her father-in-law asked for 32.00 lacs and another 2.00 lacs as payment for using articles like bed, mattress, electricity, ration etc. Hence, she filed a complaint before the police. The police registered the FIR and conducted the investigation. After completion of the investigation, the police presented a challan against the petitioner and other persons.

3. The petitioner filed the present petition for quashing of FIR filed against her. She asserted that the informant had not made any allegation in the meeting held on 28.6.2020 against the petitioner. No specific role was assigned to the petitioner.

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She was summoned to face trial without any material.

Therefore, it was prayed that the present petition be allowed and the FIR be quashed.

4. The petition is opposed by filing a reply by respondent No.1, denying the contents of the petition. It was asserted that the petitioner is the mother-in-law of the informant. The informant had specifically stated that the petitioner had demanded the money and humiliated her. She also stated that the petitioner had taken away her gold ornaments and had not returned them. These facts were verified during the investigation. Hence, the police filed a challan against the petitioner before the competent Court.

5. A separate reply was filed by respondent No.2- informant, taking preliminary objections regarding lack of maintainability and the petition being an abuse of the process of the law. The contents of the petition were denied on merits. It was asserted that the FIR makes out a prima facie case against the petitioner and her family members. Specific allegations were made against the petitioner and other family members. The police found sufficient reasons to file the charge sheet and the .

charge sheet was presented against the petitioner before learned CJM, Kullu. It is not permissible to appreciate the evidence at this stage. Therefore, it was prayed that the present petition be dismissed.

6. I have heard Mr B.L. Soni, learned Counsel for the petitioner-accused, Mr Ajit Sharma, learned Deputy Advocate General, for respondent No.1-State and Mr Rohit, learned counsel for respondent No.2-informant.

7. Mr. B.L. Soni, learned counsel for the petitioner-

accused submitted that there are no specific allegations against the petitioner and the learned Trial Court erred in summoning her. The family members of the husband cannot be summoned unless there are specific allegations with date, place and time against them. He relied upon the judgments of the Hon'ble Supreme Court in Neelu Chopra and another Vs. Bharti 2009 (10) SCC 184, Abhishek v. State of M.P., 2023 SCC OnLine SC 1083; 2023 INSC 779, Achin Gupta v. State of Haryana, 2024 SCC OnLine SC 759; 2024 INSC 369 and Mamidi Anil Kumar Reddy v. State of A.P., 2024 SCC OnLine SC 127; 2024 (2) SCR 252 in support of his submission.

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8. Mr. Ajit Sharma, learned Deputy Advocate General for respondent No.1-State submitted that allegations in the FIR constitute the commission of a cognizable offence. The Court does not see the truthfulness or otherwise of the allegations made in the FIR while deciding the petition under Section 482 of CrPC. The informant had specifically stated that the petitioner had harassed her by demanding the dowry. The petitioner had also taken her gold ornaments. A person cannot remember the date and the time of the incident. The only requirement is that a specific role should be assigned to the accused. In the present case, a specific role was assigned to the petitioner with particulars, therefore, the FIR should not be quashed.

9. Mr. Rohit, learned counsel for respondent No.2 adopted the submission of Mr. Ajit Sharma, learned Deputy Advocate General and submitted that the petitioner being the mother-in-law of the informant had harassed her. She had demanded the dowry articles and had taken away the jewellery of the informant which was never returned. The learned Trial Court had rightly summoned the petitioner and there is no infirmity in the order passed by the learned Trial Court. Hence, .

he prayed that the present petition be dismissed.

10. The law regarding the exercise of jurisdiction under Section 482 of Cr.P.C. was considered by the Hon'ble Supreme Court in A.M. Mohan v. State, 2024 SCC OnLine SC 339, wherein it was observed:

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9. The law with regard to the exercise of jurisdiction under Section 482 of Cr. P.C. to quash complaints and criminal proceedings has been succinctly summarized by this Court in the case of Indian Oil Corporation v. NEPC India Limited (2006) 6 SCC 736: 2006 INSC 4521 after considering the earlier precedents. It will be apposite to refer to the following observations of this Court in the said case, which read thus:

"12. The principles relating to the exercise of jurisdiction under Section 482 of the Code of Criminal Procedure to quash complaints and criminal proceedings have been stated and reiterated by this Court in several decisions. To mention a few--Madhavrao Jiwajirao Scindia v. Sambhajirao Chandrojirao Angre [(1988) 1 SCC 692: 1988 SCC (Cri) 234], State of Haryana v. Bhajan Lal [1992 Supp (1) SCC 335: 1992 SCC (Cri) 426], Rupam Deol Bajaj v. Kanwar Pal Singh Gill [(1995) 6 SCC 194: 1995 SCC (Cri) 1059], Central Bureau of Investigation v. Duncans Agro Industries Ltd. [(1996) 5 SCC 591: 1996 SCC (Cri) 1045], State of Bihar v. Rajendra Agrawalla [(1996) 8 SCC 164: 1996 SCC (Cri) 628], Rajesh Bajaj v. State NCT of Delhi [(1999) 3 SCC 259: 1999 SCC (Cri) 401], Medchl Chemicals & Pharma (P) Ltd. v. Biological E. Ltd. [(2000) 3 SCC 269: 2000 SCC (Cri) 615], Hridaya Ranjan Prasad Verma v. State of Bihar [(2000) 4 SCC 168: 2000 SCC (Cri) 786], M. Krishnan v. Vijay Singh [(2001) 8 SCC 645: 2002 SCC (Cri) 19] and Zandu Pharmaceutical Works Ltd. v. Mohd. Sharaful Haque [(2005) 1 SCC 122 : 2005 SCC (Cri) 283]. The principles, relevant to .

our purpose are:

(i) A complaint can be quashed where the allegations made in the complaint, even if they are taken at their face value and accepted in their entirety, do not prima facie constitute any offence or make out the case alleged against the accused.

For this purpose, the complaint has to be examined as a whole, but without examining the merits of the allegations. Neither a detailed inquiry nor a meticulous analysis of the material nor an assessment of the reliability or genuineness of the allegations in the complaint is warranted while examining prayer for quashing a complaint.

(ii) A complaint may also be quashed where it is a clear abuse of the process of the court, as when the criminal proceeding is found to have been initiated with mala fides/malice for wreaking vengeance or to cause harm, or where the allegations are absurd and inherently improbable.

(iii) The power to quash shall not, however, be used to stifle or scuttle a legitimate prosecution. The power should be used sparingly and with abundant caution.

(iv) The complaint is not required to verbatim reproduce the legal ingredients of the offence alleged. If the necessary factual foundation is laid in the complaint, merely on the ground that a few ingredients have not been stated in detail, the proceedings should not be quashed. Quashing of the complaint is warranted only where the complaint is so bereft of even the basic facts which are necessary for making out the offence.

(v.) A given set of facts may make out : (a) purely a civil wrong; (b) purely a criminal offence; or (c) a civil wrong as also a criminal offence. A commercial .

transaction or a contractual dispute, apart from furnishing a cause of action for seeking remedy in civil law, may also involve a criminal offence. As the nature and scope of a civil proceeding are different from a criminal proceeding, the mere fact that the complaint relates to a commercial transaction or breach of contract, for which a civil remedy is available or has been availed, is not by itself a ground to quash the criminal proceedings. The test is whether the allegations in the complaint disclose a criminal offence or not.

11. Similar is the judgment *Maneesha Yadav v. State of U.P.*, 2024 SCC OnLine SC 643, wherein it was held: -

12. We may gainfully refer to the following observations of this Court in the case of *State of Haryana v. Bhajan Lal* 1992 Supp (1) SCC 335: 1990 INSC 363:

"102. In the backdrop of the interpretation of the various relevant provisions of the Code under Chapter XIV and of the principles of law enunciated by this Court in a series of decisions relating to the exercise of the extraordinary power under Article 226 or the inherent powers under Section 482 of the Code which we have extracted and reproduced above, we give the following categories of cases by way of illustration wherein such power could be exercised either to prevent abuse of the process of any court or otherwise to secure the ends of justice, though it may not be possible to lay down any precise, clearly defined and sufficiently channelised and inflexible guidelines or rigid formulae and to give an exhaustive list of myriad kinds of cases wherein such power should be exercised.

(1) Where the allegations made in the first information report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused.

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(2) Where the allegations in the first information report and other materials, if any, accompanying the FIR do not disclose a cognizable offence, justifying an investigation by police officers under Section 156(1) of the Code except under an order of a Magistrate within the purview of Section 155(2) of the Code.

(3) Where the uncontroverted allegations made in the FIR or complaint and the evidence collected in support of the same do not disclose the commission of any offence and make out a case against the accused.

(4) Where the allegations in the FIR do not constitute a cognizable offence but constitute only a non-

cognizable offence, no investigation is permitted by a police officer without an order of a Magistrate as contemplated under Section 155(2) of the Code.

(5) Where the allegations made in the FIR or complaint are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceeding against the accused.

(6) Where there is an express legal bar engrafted in any of the provisions of the Code or the concerned Act (under which a criminal proceeding is instituted) to the institution and continuance of the proceedings and/or where there is a specific provision in the Code or the concerned Act, providing efficacious redress for the grievance of the aggrieved party.

(7) Where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge.

103. We also give a note of caution to the effect that .

the power of quashing a criminal proceeding should be exercised very sparingly and with circumspection and that too in the rarest of rare cases; that the court will not be justified in embarking upon an enquiry as to the reliability or genuineness or otherwise of the allegations made in the FIR or the complaint and that the extraordinary or inherent powers do not confer an arbitrary jurisdiction on the court to act according to its whim or caprice."

12. The present petition has to be considered as per the parameters laid down by the Hon'ble Supreme Court.

13. It was laid down by the Hon'ble Supreme Court in Neelu Chopra v. Bharti, (2009) 10 SCC 184: (2010) 1 SCC (Cri) 286:

2009 SCC OnLine SC 1693 that when no particulars were given as to the date on which the ornaments were handed over, the number of ornaments or their description and the date when the ornaments were demanded and were refused, it is a general and vague complaint. The Court has to see that particulars of the offences committed by every accused and the role played by the accused in committing the offence are given. It was observed:-

"7. When we see the complaint as a whole it is basically against the accused Rajesh. All the allegations are against Rajesh. There is undoubtedly some reference to the present appellants, but what strikes us is that there are no particulars given as to the date on which the ornaments were handed over, as to the exact number of ornaments or their description and to the date when the ornaments were asked .

back and were refused. Even the weight of the ornaments is not mentioned in the complaint and it is a general and vague complaint that the ornaments were sometimes given in the custody of the appellants and they were not returned. What strikes us more is that even in Para 10 of the complaint where the complainant says that she asked for her clothes and ornaments which were given to the accused and they refused to give these back, the date is significantly absent.

8. It seems from the order taking cognizance that the learned Magistrate has mentioned about the version of the complainant is supported by Bhagwati and Dharampal to the fact that the ornaments were entrusted to Krishan Saroop and Rajesh while clothes were entrusted to Rakhee and they refused to hand over the same. Even their statements could not be better than the vague complaint. Even about the clothes, the date on which they were handed over to Rakhee who happens to be the daughter of the present appellants and the other details are very significantly absent. It was also the version of the complainant that she was beaten in support of which she has filed a certificate from AIIMS Hospital, New Delhi. However, in the complaint, it is not seen as to on which date she was beaten and by whom. It is significant to note that the matter against Rakhee, the fourth original accused has already been dropped as she was in fact not even a resident of the same house.

9. In order to lodge a proper complaint, the mere mention of the sections and the language of those sections is not the be all and end all of the matter. What is required to be brought to the notice of the court is the particulars of the offence committed by each and every accused and the role played by each and every accused in committing that offence.

10. When we see the complaint, the complaint is sadly vague. It does not show as to which accused has committed what offence and what is the exact role played by these appellants in the commission of offence. There could be said something against Rajesh, as the allegations are made against him more precisely but he is no more .

and has already expired. Under such circumstances, it would be an abuse of the process of law to allow the prosecution to continue against the aged parents of Rajesh, the present appellants herein, on the basis of a vague and general complaint which is silent about the precise acts of the appellants." (Emphasis supplied)

14. Similarly, it was held in *Abhishek (supra)* that the tendency of false implication by way of general omnibus allegations if left unchecked would result in the misuse of the process of law. It was observed:

"13. Instances of a husband's family members filing a petition to quash criminal proceedings launched against them by his wife in the midst of matrimonial disputes are neither a rarity nor of recent origin. Precedents aplenty abound on this score. We may now take note of some decisions of particular relevance. Recently, in *Kahkashan Kausar alias Sonam v. State of Bihar* [(2022) 6 SCC 599], this Court had occasion to deal with a similar situation where the High Court had refused to quash a FIR registered for various offences, including Section 498A IPC. Noting that the foremost issue that required determination was whether allegations made against the in-laws were general omnibus allegations which would be liable to be quashed, this Court referred to earlier decisions wherein concern was expressed over the misuse of Section 498A IPC and the increased tendency to implicate relatives of the husband in matrimonial disputes. This Court observed that false implications by way of general omnibus allegations made in the course of matrimonial disputes, if left unchecked, would result in misuse of the process of law. On the facts of that case, it was found that no specific allegations were made against the in-laws by the wife and it was held that allowing their prosecution in the absence of clear allegations against the in-laws would result in an abuse of the process of law. It was also noted that a .

criminal trial, leading to an eventual acquittal, would inflict severe scars upon the accused and such an exercise ought to be discouraged.

14. In *Preeti Gupta v. State of Jharkhand* [(2010) 7 SCC 667], this Court noted that the tendency to implicate the husband and all his immediate relations is also not uncommon in complaints filed under Section 498A IPC. It was observed that the Courts have to be extremely careful and cautious in dealing with these complaints and must take pragmatic realities into consideration while dealing with matrimonial cases, such as allegations of harassment by the husband's close relations, who were living in different cities and never visited or rarely visited the place where the complainant resided, would add an entirely different complexion and such allegations would have to be scrutinised with great care and circumspection.

15. Earlier, in *Neelu Chopra v. Bharti* [(2009) 10 SCC 184], this Court observed that the mere mention of statutory provisions and the language thereof, for lodging a complaint, is not the 'be all and end all' of the matter, as what is required to be brought to the notice of the Court is the particulars of the offence committed by each and every accused and the role played by each and every accused in the commission of that offence. These observations were made in the context of a matrimonial dispute involving Section 498A IPC." (Emphasis supplied)

15. It was held in Achin Gupta (supra) that if a person is needed to face a criminal trial or some general and sweeping allegations without any specific instances, it would amount to abuse of the process of the law. It was observed: -

"18. The plain reading of the FIR and the chargesheet papers indicate that the allegations levelled by the First Informant are quite vague, general and sweeping, .

specifying no instances of criminal conduct. It is also pertinent to note that in the FIR no specific date or time of the alleged offence/offences has been disclosed. Even the police thought fit to drop the proceedings against the other members of the Appellant's family. Thus, we are of the view that the FIR lodged by Respondent No. 2 was nothing but a counterblast to the divorce petition & also the domestic violence case.

25. If a person is made to face a criminal trial on some general and sweeping allegations without bringing on record any specific instances of criminal conduct, it is nothing but abuse of the process of the court. The court owes a duty to subject the allegations levelled in the complaint to thorough scrutiny to find out, prima facie, whether there is any grain of truth in the allegations or whether they are made only with the sole object of involving certain individuals in a criminal charge, more particularly when a prosecution arises from a matrimonial dispute." (Emphasis supplied)

16. It was further held that if there is an involvement of the husband and close relative with an oblique motive, the Court should read between the lines to do substantial justice. It was observed:-

"31. We are of the view that category 7 referred to above should be taken into consideration and applied in a case like the one on hand a bit liberally. If the Court is convinced by the fact that the involvement by the complainant of her husband and his close relatives is with an oblique motive then even if the FIR and the chargesheet disclose the commission of a cognizable offence the Court with a view to doing substantial justice should read in between the lines the oblique motive of the complainant and take a pragmatic view of the matter. If the submission canvassed by the counsel appearing for the Respondent No. 2 and the State is to be accepted mechanically then in .

our opinion the very conferment of the inherent power by the Cr. P.C. upon the High Court would be rendered otiose. We are saying so for the simple reason that if the wife on account of matrimonial disputes decides to harass her husband and his family members then the first thing, she would ensure is to see that proper allegations are levelled in the First Information Report. Many times the services of professionals are availed for the same and once the complaint is drafted by a legal mind, it would be very difficult thereafter to weed out any loopholes or other deficiencies in the same. However, that does not mean that the Court should shut its

eyes and raise its hands in helplessness, saying that whether true or false, there are allegations in the First Information Report and the chargesheet papers disclose the commission of a cognizable offence. If the allegations alone as levelled, more particularly in a case like the one on hand, are to be looked into or considered then why the investigating agency thought fit to file a closure report against the other co-accused? There is no answer to this at the end of the learned counsel appearing for the State. We say so because allegations have been levelled not only against the Appellant herein but even against his parents, brother & sister. If that be so, then why the police did not deem it fit to file a chargesheet against the other co-accused? It appears that even the investigating agency was convinced that the FIR was nothing but an outburst arising from a matrimonial dispute." (Emphasis supplied)

17. It was held that in matrimonial disputes, the parents including the close relatives make a mountain out of a mole and every matrimonial conduct amounting to nuisance does not constitute cruelty. It was observed:-

"32. Many times, the parents including the close relatives of the wife make a mountain out of a mole. Instead of salvaging the situation and making all possible .

endeavours to save the marriage, their action either due to ignorance or on account of sheer hatred towards the husband and his family members, brings about the complete destruction of marriage on trivial issues. The first thing that comes to mind of the wife, her parents and her relatives is the Police as if the Police are the panacea of all evil. No sooner the matter reaches up to the Police, then even if there are fair chances of reconciliation between the spouses, they would get destroyed. The foundation of a sound marriage is tolerance, adjustment and respecting one another. Tolerance of each other's fault to a certain bearable extent has to be inherent in every marriage. Petty quibbles and trifling differences are mundane matters and should not be exaggerated and blown out of proportion to destroy what is said to have been made in heaven. The Court must appreciate that all quarrels must be weighed from that point of view in determining what constitutes cruelty in each particular case, always keeping in view the physical and mental conditions of the parties, their character and social status. A very technical and hyper-sensitive approach would prove to be disastrous for the very institution of the marriage. In matrimonial disputes, the main sufferers are the children. The spouses fight with such venom in their hearts that they do not think even for a second that if the marriage would come to an end, then what will be the effect on their children. Divorce plays a very dubious role so far as the upbringing of the children is concerned. The only reason why we are saying so is that instead of handling the whole issue delicately, the initiation of criminal proceedings would bring about nothing but hatred for each other. There may be cases of genuine ill- treatment and harassment by the husband and his family members towards the wife. The degree of such ill- treatment or harassment may vary. However, the Police machinery should be resorted to as a measure of last resort and that too in a very genuine case of cruelty and harassment. The Police machinery

cannot be utilised for the purpose of holding the husband at ransom so that he .

could be squeezed by the wife at the instigation of her parents or relatives or friends. In all cases, where the wife complains of harassment or ill-treatment, Section 498A of the IPC cannot be applied mechanically.

No FIR is complete without Sections 506(2) and 323 of the IPC. Every matrimonial conduct, which may cause annoyance to the other, may not amount to cruelty. Mere trivial irritations, and quarrels between spouses, which happen in day-to-day married life, may also not amount to cruelty"

18. Similarly, it was held in Mamidi (supra) that the phenomena of false implication by general omnibus allegation in the case of matrimonial dispute are not unknown to the Court.

When the allegations are general and omnibus, the prosecution should not be continued. It was observed: -

"14. In the considered opinion of this Court, there is significant merit in the submissions of the Learned Counsel for the Appellants. A bare perusal of the complaint, statement of witnesses and the charge sheet shows that the allegations against the Appellants are wholly general and omnibus in nature; even if they are taken in their entirety, they do not prima facie make out a case against the Appellants. The material on record neither discloses any particulars of the offences alleged nor discloses the specific role/allegations assigned to any of the Appellants in the commission of the offences.

15. The phenomenon of false implication by way of general omnibus allegations in the course of matrimonial disputes is not unknown to this Court. In Kahkashan Kausar alias Sonam v. State of Bihar (2022) 6 SCC 599, this Court dealt with a similar case wherein the allegations made by the complainant-wife against her in-laws u/s.

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498A and others were vague and general, lacking any specific role and particulars. The court proceeded to quash the FIR against the accused persons and noted that such a situation if left unchecked, would result in the abuse of the process of law.

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17. Considering the dicta in Mahmood Ali (supra), we find that the High Court in this case has failed to exercise due care and has mechanically permitted the criminal proceedings to continue despite specifically finding that the allegations are general and omnibus in nature. The Appellants herein approached the High Court on inter alia grounds that the proceedings were re-initiated on vexatious grounds and even

highlighted the commencement of divorce proceedings by Respondent No. 2. In these peculiar circumstances, the High Court had a duty to consider the allegations with great care and circumspection so as to protect against the danger of unjust prosecution."

19. The present case has to be seen with the yardsticks laid down by the Hon'ble Supreme Court.

20. The informant stated in her complaint that gold jewellery given to her by her parents at the time of marriage was taken away by her parents-in-law and it was never returned to her. The particulars of the jewellery, the date of taking away the jewellery or the date of demanding the jewellery were not given.

There may be some force in the submission of Mr. Ajit Sharma, learned Deputy Advocate General for respondent No.1-State that it is difficult for a person to remember the date of the incident .

but the informant could at least mention the details of the jewellery taken from her. The mere mention of gold jewellery without any detail will constitute an omnibus and general allegation, of which no Court can take cognizance.

21. The informant further stated that her parents tried to pacify the demands by presenting valuable gifts and money to her husband and in-laws. Again, the details of the valuable gifts and money were not given. It was not mentioned as to what kind of valuable item was given and to whom. The details of the money paid and the person to whom it was paid are missing.

Thus, this allegation is general and omnibus.

22. The informant stated that her husband, parents-in-

law and sister-in-law started making comments about the money and other valuables that should have been given to them during the marriage as dowry which later turned into direct demands of dowry. Again, it has not been mentioned as to what kind of money or valuables were demanded and by whom. Thus, this allegation is also general.

23. The informant stated that her husband, parents-in-

law and sister-in-law started asking the informant's parents for .

demands and money. They also started asking for her whole salary. Again, the details of the demand have not been mentioned. No article was mentioned, which was demanded by the accused from the informant's parents. The occasion when such a demand was made is also missing. Thus, this allegation is vague and general.

24. The informant stated that the petitioner would not allow her to eat healthy food and she used to pass insulting comments that affected the health of her child. It has not been mentioned as to what

kind of healthy food the informant demanded which was denied to her. Not even a single comment was mentioned to show that the comment was insulting. Hence, the allegations are general and omnibus.

25. There is no other allegation made against the petitioner. Hence, the contents of the FIR do not satisfy the requirements laid down by the Hon'ble Supreme Court and it is not permissible to continue with the prosecution in the present case, as the same would amount to an abuse of the process of the Court, as laid down by the Hon'ble Supreme Court.

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26. Consequently, the present petition is accepted and the summoning order dated 18.9.2020 and the consequential proceedings pending before the learned Chief Judicial Magistrate, Kullu in case titled State of H.P. Vs. Aman Anand and others are ordered to be quashed.

27. The observation made herein before shall remain confined to the disposal of the petition and will have no bearing, whatsoever, on the merits of the case.

(Rakesh Kainthla) Judge 1st July, 2024 (Chander)